

3. S-CV-0055804 Gannon, Raime v. Childtime Learning Centers

Plaintiff's Motion to Compel Further Responses to Form Interrogatories

Placer County Local Rule 20.2.1, requires that “[p]rior to filing any motion ... the moving party must make a reasonable and good faith attempt to resolve the matter....”

CCP § 2030.300(b)(1) requires that a motion to compel further responses “*shall* be accompanied by a meet and confer declaration under Section 2016.040” [emphasis added]. CCP § 2016.040 states “[a] meet and confer declaration in support of a motion *shall* state facts showing a reasonable and good faith attempt either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion” [emphasis added].

CCP § 2023.020 states “[n]otwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fee, incurred by anyone as a result of that conduct.”

Plaintiff’s motion acknowledges that no meet and confer discussion was even attempted. As a result, plaintiff’s motion is denied. In addition, as a result of plaintiff’s failure to meet and confer prior to filing this motion, plaintiff shall pay sanctions to defendant in the amount of \$457.50.